

ORIGINAL

(S E R V E D)
(MARCH 31, 1993)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

March 31, 1993

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

**SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.**

**LOCATION OF HEARING;
PROPOSED CERTIFIED INDEX**

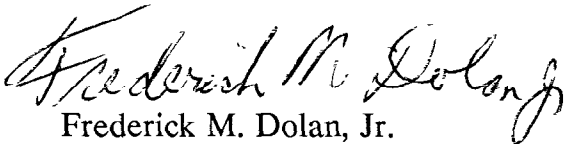
The parties are proceeding in the mediation process but preparation for hearing must continue as well in the event that settlement proves futile. The parties have recognized that the case can move forward on two tracks.

The hearing now scheduled to commence on April 27, 1993, in San Francisco, CA, will be held at 9:30 a.m. (Local Time) in Department 8, Third Floor, City Hall, 400 Van Ness Avenue, San Francisco, California. This portion of the hearing will continue

through May 13, 1993, and then adjourn to be reconvened at a mutually satisfactory time and place.

A vast number of verified statements, exhibits and errata have been filed with the Commission but have not yet been received in evidence. It is essential to the best use of the hearing time that all counsel be aware of the exact verified statements, exhibits, errata, etc., upon which each designated witness will be cross-examined. Therefore each party shall prepare and file on April 15, 1993, a proposed certified index which must include, at a minimum, an entry consisting of the name of each witness to be cross-examined, the date or dates of his or her verified statement or statements, the date and title or description of each exhibit, and errata thereto. It would be helpful if the list were organized in the order in which counsel, by mutual agreement, plan to call the witnesses.

The verified statements of those affiants who have not been requested to appear for cross-examination will be admitted into evidence absent objection. Respective sponsoring counsel should prepare an appropriate order for my approval receiving such documents into evidence.


Frederick M. Dolan, Jr.
Administrative Law Judge